

26STCV03781 26STCV03781

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Case Number: 26STCV03781 Hearing Date: August 17, 2026 Dept: 732

Kevin Alberto Ponce v. ARB, Inc., et al.

Monday,

August 17, 2026

CASE NUMBER:

26STCV03781

OPPOSED

Defendant

CAREOnsite, Inc.'s Demurrer to the Complaint

Facts: This is

an action for employment discrimination and failure to accommodate. The Complaint alleges as follows. Plaintiff Kevin Alberto Ponce ("Plaintiff") was employed as a laborer by Defendants ARB, Inc. ("ARB") and its parent company Defendant Primoris Services Corporation ("PSC").

(Complaint ¶¶ 13–14, 22.) Plaintiff was made to work in a slippery trench that he had specifically identified as unsafe to his supervisor. (Complaint ¶ 23.) Plaintiff slipped and fell while working in the trench, causing him serious injuries. (Complaint ¶ 23.) Plaintiff's supervisors delayed Plaintiff in his requests to leave the worksite to obtain medical care, and when they finally obliged his requests, directed him to the facility of Defendant CAREOnsite,

Inc. ("COSI"). (Complaint ¶¶ 23–26.) There, COSI clinicians subjected Plaintiff to an illegal drug test and permitted Plaintiff's supervisor to remain in the room while Plaintiff was being examined. (Complaint ¶¶ 30–32.) Under the influence of Plaintiff's employers, COSI's clinicians deliberately underplayed the severity of Plaintiff's injuries, returning him to work without restrictions. (Complaint ¶ 32.)

Plaintiff's employer thereafter provided a false accommodation to Plaintiff, consisting of administrative office work that only exacerbated his injuries. (Complaint ¶¶ 40–41.) Plaintiff protested and was sent to subsequent visits to COSI, again with his supervisor present, while the clinician in each instance, under the employer's influence, declined to prescribe work restrictions. (Complaint ¶¶ 42–47.) Plaintiff finally obtained an appointment with a physician through Defendant's third-party worker's compensation administrator, who prescribed physical therapy and light-duty work restrictions with a "sit down work only" condition. (Complaint ¶¶ 49–50.) Plaintiff's employer provided work according to these accommodations for one week before terminating Plaintiff's employment. (Complaint ¶¶ 52–53.)

Procedural History: Plaintiff filed the Complaint on February 4, 2026, alleging twelve causes of action:

1.
FEHA Disability Discrimination
2.
FEHA Failure to Accommodate
3.
FEHA Interactive Process Violation
4.
FEHA Retaliation
5.
Failure to Prevent FEHA Violations
6.
Invasion of Privacy

7.

Labor Code § 432.6 / Gov. Code § 12953

8.

Aiding and Abetting FEHA Violations

9.

Unlawful Medical Inquiry under FEHA

10. Labor Code § 1102.5 Retaliation

11. Wrongful

Termination

12. Defamation

Defendant COSI filed the
present demurrer on March 30, 2026.

Plaintiff filed an opposition
on May 20, 2026.

Defendant filed a reply on May
27, 2026.

The demurrer was continued by
the court from June 3, 2026, to August 17, 2026,

Analysis:

I. DEMURRER

A demurrer should be
sustained only where the defects appear on the face of the pleading or are
judicially noticed. (Code Civ. Proc. § 430.30, et seq.) In particular, a court should sustain a demurrer if a
complaint does not allege facts that are legally sufficient to constitute a
cause of action. (See *id.* § 430.10, subd. (e).) As the Supreme
Court held in *Blank v. Kirwan* (1985) 39
Cal.3d 311: "We treat the demurrer as admitting all material facts properly
pleaded, but not contentions, deductions or conclusions of fact or law. . . . Further,

we give the complaint a reasonable interpretation, reading it as a whole and its parts in their context.” (Id. at p. 318; see also *Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 [“A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed.”])

“In determining whether the complaint is sufficient as against the demurrer ... if on consideration of all the facts stated it appears the plaintiff is entitled to any relief at the hands of the court against the defendants the complaint will be held good although the facts may not be clearly stated.” (*Gressley v. Williams* (1961) 193 Cal.App.2d 636, 639.)

“A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures.” (*Khoury v. Maly’s of Cal., Inc.* (1993) 14 Cal.App.4th 612, 616.) Such demurrers “are disfavored, and are granted only if the pleading is so incomprehensible that a defendant cannot reasonably respond.” (*Mahan v. Charles W. Chan Insurance Agency, Inc.* (2017) 14 Cal.App.5th 841, 848.)

A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment. (*Schifando v. City of Los Angeles*, supra, 31 Cal.4th at p. 1081.) The demurrer also may be sustained without leave to amend where the nature of the defects and previous unsuccessful attempts to plead render it probable plaintiff cannot state a cause of action. (*Krawitz v. Rusch* (1989) 209 Cal.App.3d 957, 967.)

Defendant CAREOnsite, Inc. (“COSI”) submits a demurrer to the first, second, third, fourth, fifth, seventh, and ninth causes of action in the Complaint of Plaintiff Kevin Alberto Ponce (“Plaintiff”) on grounds that it was not Plaintiff’s employer, and Plaintiff fails to allege facts establishing that it was the agent of Plaintiff’s actual employers, Defendants ARB, Inc. (“ARB”) and Primoris Services Corporation (“PSC,” or with ARB, “Employers”). (Demurrer at pp. 10–14.) COSI also argues that the Complaint fails to allege any facts to show that it engaged in any wrongful employment-related conduct, save the provision of a

lawful drug test during an examination of Plaintiff following a worksite accident. (Demurrer at pp. 14–19.)

1.

Business-Entity Agents under FEHA

The Fair Employment and

Housing Act (“FEHA”) prohibits “employer[s]” from performing a variety of unlawful employment practices. (See, e.g., Gov. Code § 12940, subd. (a).) An “employer” is defined to include “any person regularly employing five or more persons, or any person acting as an agent of an employer, directly or indirectly.” (Gov. Code, § 12926, subd. (d).)

It has been held that

the language “person acting as an agent of an employer” does not extend FEHA discrimination liability to individual employees and supervisors of an employer. (See *Reno v. Baird* (1998) 18 Cal.4th 640, 645.) But it has been held that business entities, unlike individual employees, may be liable if they act as the agent for the plaintiff’s employer. (See *Raines v. U.S. Healthworks Medical Group* (2023) 15 Cal.5th 268, 273 [“We conclude that an employer’s business-entity agents can be held directly liable under the FEHA for employment discrimination in appropriate circumstances when the business-entity agent has at least five employees and carries out FEHA-regulated activities on behalf of an employer.”].)

COSI argues that it

cannot be considered an agent of Plaintiff’s Employers because Plaintiff does not plead COSI’s control over the day-to-day terms of employment. (Demurrer at p. 11.) But the authority that COSI cites for its argument applies to determinations whether a liability can pass from an employer to another entity, such as a franchisor or broader political subdivision, through the employer’s status as an agent of the other entity. (See *Patterson v. Domino’s Pizza, LLC* (2014) 60 Cal.4th 474, 497 [applying agency standard to franchisor]; *Vernon v. State of California* (2004) 116 Cal.App.4th 114 [holding that the state was not a joint employer of a local firefighter].) Here, the situation is the reverse. It is not alleged that COSI in some manner acted upon Plaintiff through its agents, ARB and PSC, but rather that Plaintiff’s Employers used COSI as its agent to deny Plaintiff proper workplace accommodations.

COSI further argues

that there are no facts alleged to show that COSI had any power or influence

over the employment conditions to which Plaintiff was subject. (Demurrer at pp. 11–13.) But the Complaint in fact alleges that the Employers required Plaintiff to seek medical care at COSI after his accident, and that COSI, acting per the instructions and influence of Plaintiff's Employers, required Plaintiff to undergo an illegal drug test and an examination in the presence of Plaintiff's supervisor. (Complaint ¶¶ 26–27.) It is also alleged that, per an agreement with Plaintiff's employers, COSI's clinician failed to adequately diagnose, treat, or prescribe workplace restrictions for Plaintiff's condition, in order to absolve Plaintiff's Employers of the obligation to accommodate him. (Complaint ¶¶ 27–34.)

The Complaint thus alleges that COSI “carries out FEHA-regulated activities on behalf of an employer” by acting, under the employer's instructions and supervision, to tailor its medical diagnoses and recommended workplace restrictions to the employer's desired accommodation, rather than the employee's medical needs. It is therefore not accurate to state, as COSI does in its demurrer, that “Plaintiff does not plead that COSI had any control over how ARB accommodated or did not accommodate him.” (Demurrer at p. 12.) It is also inaccurate to state, as COSI does, that the Complaint discloses that Plaintiff was permitted to go to other medical providers (Demurrer at p. 13), when the Complaint alleges that Plaintiff's employers specifically directed him to seek treatment at COSI, and after Plaintiff did so and obtained different treatment plans and work restrictions, his employment was terminated. (Complaint ¶¶ 50–53.)

The above allegations establish that Plaintiff has adequately alleged COSI's status as a business-entity agent under FEHA, and may therefore be liable for unlawful employment practices committed to it within the scope of its agency. The demurrer to first through fifth, seventh and ninth causes of action is **OVERRULED** on this basis.

2.

Failure to Accommodate / Interactive
Process

“[T]o establish a failure to accommodate claim, [the plaintiff] must show (1) she has a

disability covered by FEHA; (2) she can perform the essential functions of the position; and (3) [the defendant] failed reasonably to accommodate her disability.” (Brown v. Los Angeles Unified School Dist. (2021) 60 Cal.App.5th 1092, 1107.) “Under FEHA, it is an unlawful practice for an employer to fail to engage in a good faith interactive process with the employee to determine an effective reasonable accommodation if an employee with a known physical disability requests one.” (Id. at p. 1109.)

COSI argues that the

Complaint lacks any denial of accommodations to Plaintiff, and additionally denies any responsibility for control of accommodations. (Demurrer at pp. 14–16.)

This argument misreads the Complaint. Although the Complaint alleges that Plaintiff’s employers assigned plaintiff

to “office work” and “administrative office-only duties” after consulting with COSI (Complaint ¶¶ 40, 43), Plaintiff alleges that these accommodations were set in collaboration with COSI’s false diagnoses and prescriptions, and in fact caused Plaintiff’s condition to worsen. (Complaint ¶¶ 40–47.) Plaintiff alleges that he was not provided a reasonable accommodation until a different medical provider prescribed a “sit down work only” restriction and physical therapy, for which Plaintiff sought time off. (Complaint ¶¶ 49–50.) Instead, one week after obtaining the new restrictions, Plaintiff was terminated. (Complaint ¶¶ 52–53.) And as discussed above, it is alleged that COSI acted as the Employers’ agent in tailoring its proposed restrictions to suit the accommodations they desired to impose, rather than the medical needs of the Plaintiff, thereby supplanting any actual interactive process.

(Complaint ¶¶ 36, 40–41.)

The Complaint therefore

alleges that COSI acted as the agent of Plaintiff’s Employers to limit the workplace restrictions prescribed for Plaintiff and thus to limit any accommodations required of his

Employers. It is further alleged that the accommodations provided by Plaintiff’s Employer’s prior to Plaintiff seeking out a second opinion only exacerbated his injuries, and thus did not constitute a reasonable accommodation. The demurrer is therefore OVERRULED as to the second and third causes of action for failure to accommodate and failure to engage in the interactive process.

3.

Discrimination & Retaliation

To establish a discrimination claim under FEHA, an employee must prove the following elements: “(1) he was a member of a protected class, (2) he was qualified for the position he sought or was performing competently in the position he held, (3) he suffered an adverse employment action, such as termination, demotion, or denial of an available job, and (4) some other circumstance suggests discriminatory motive.” (*Dinslage v. City and County of San Francisco* (2016) 5 Cal.App.5th 368, 378.)

And “[i]n order to establish a prima facie case of retaliation under this section [FEHA], a plaintiff must show (1) he or she engaged in a ‘protected activity, (2) the employer subjected the employee to an adverse employment action, and (3) a causal link existed between the protected activity and the employer’s action.”(*Moore v. Regents of University of California* (2016) 248 Cal.App.4th 216, 244, internal quotation marks omitted.)

COSI presents overlapping arguments against Plaintiff’s first and fourth causes of action for FEHA discrimination and retaliation, arguing that the Complaint “has not pled any facts that show that COSI took any steps to discriminate against him” (Demurrer at p. 14–15) and further that “COSI did nothing to retaliate against Plaintiff.” (Demurrer at p. 17.) The court interprets these as arguments that the Complaint fails to allege that COSI undertook or participated in any adverse employment actions against Plaintiff.

“[A]n employee must demonstrate that he or she has been subjected to an adverse employment action that materially affects the terms, conditions, or privileges of employment, rather than simply that the employee has been subjected to an adverse action or treatment that reasonably would deter an employee from engaging in the protected activity.” (*Yanowitz v. L’Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1051.) “[A]lthough an adverse employment action must materially affect the terms, conditions, or privileges of employment to be actionable, the determination of whether a particular action or course of conduct rises to the level of actionable conduct should take into account the unique circumstances of the affected employee as well as the workplace context of the claim.” (*Id.* at p. 1052.)

The prohibitions against discriminatory and retaliatory adverse employment actions

protects

an employee against unlawful discrimination with respect not only to so-called “ultimate employment actions” such as termination or demotion, but also the entire spectrum of employment actions that are reasonably likely to adversely and materially affect an employee's job performance or opportunity for advancement in his or her career. Although a mere offensive utterance or even a pattern of social slights by either the employer or co-employees cannot properly be viewed as materially affecting the terms, conditions, or privileges of employment for purposes of section 12940(a) (or give rise to a claim under section 12940(h)), the phrase “terms, conditions, or privileges” of employment must be interpreted liberally and with a reasonable appreciation of the realities of the workplace in order to afford employees the appropriate and generous protection against employment discrimination that the FEHA was intended to provide.

(Id. at pp. 1053–1054.)

Plaintiff here alleges that following adverse employment actions:

Defendant

discriminated against Plaintiff on the basis of his actual and/or perceived disabilities by, inter alia, refusing Plaintiff immediate medical care as owed to him as a benefit of employment under Labor Code § 4600, forcing Plaintiff to waive his FEHA rights in violation of under Labor Code § 432.6, subjecting Plaintiff to an unlawful medical inquiry, invading Plaintiff's privacy rights, failing to engage in an interactive process with Plaintiff, failing to provide reasonable accommodations to Plaintiff despite the availability of such without undue hardship, applying unlawful policies to Plaintiff,, wrongfully terminating Plaintiff, categorizing Plaintiff as ineligible for re-hire, defaming Plaintiff and/or by committing other adverse employment actions against Plaintiff on the same basis which, taken individually and/or whole, materially and negatively altered the terms and conditions of Plaintiff's employment, thereby violating the FEHA and California Government Code § 12940 (a).

(Complaint ¶ 63.) These actions are pleaded against all Defendants. The conduct alleged above, including the denial of immediate medical care, wrongful termination, and defamation, when interpreted against the facts alleged in the body of the complaint, constitute conduct of Defendants ARB and PSC, not COSI. Nothing in the complaint alleges COSI contributed to the decision to delay Plaintiff's visit to a medical provider in favor of an on-site first aid station (Complaint ¶ 25); that COSI played any role in the termination of Plaintiff's employment;

or that COSI in any way participated in the provision of the termination document allegedly accusing Plaintiff of "lying about an injury." (Complaint ¶ 53.) The only adverse acts alleged on the part of COSI are the administration of an unlawful drug test at his medical examination. This adverse acts encompass the alleged violation of Labor Code § 432.6, the unlawful medical inquiry, and the unlawful policies alleged in paragraph 63 of the complaint. The permitting of Plaintiff's supervisor to attend his examinations, which falls under the alleged invasion of privacy claim, and failure to accommodate or engage in the interactive process, discussed above, are already included.

Taking the above into account, the Complaint does not allege that COSI took any adverse employment actions against Plaintiff. Although Plaintiff adequately alleges that COSI engaged in conduct constituting a failure to accommodate and a denial of the interactive process, the mere failure to accommodate or engage in the interactive process cannot be construed, "without more, as adverse employment actions sufficient to support a claim of discrimination in the terms and conditions of employment." (Brown, supra, 60 Cal.App.5th at p. 1107.) And although Plaintiff alleges that COSI's examination included his supervisor's presence and an illegal drug test, it is not alleged how either action affected the terms and conditions of Plaintiff's employment, or that this drug test precipitated any adverse employment actions against Plaintiff. (See Raines, supra, 15 Cal.5th at p. 274 [employee's failure to complete invasive medical questionnaire caused employer to "revok[e] its offer of employment"].) Without more, Plaintiff's allegations do not suffice to allege discrimination or retaliation on the part of COSI.

Accordingly, the demurrer is SUSTAINED with leave to amend as to the first and fourth causes of action for FEHA discrimination and retaliation. To the extent the fifth and seventh causes of action depends on the validity of the first and fourth causes of action, the demurrer is also SUSTAINED.

Labor Code 432.6

"A person shall not, as a condition of employment, continued employment, or the receipt of any employment-related benefit, require any applicant for employment or any employee to waive any right, forum, or procedure for a violation of any provision of the California Fair Employment and Housing Act (Part 2.8 (commencing with Section 12900) of Division 3 of Title 2 of the Government

Code) or this code, including the right to file and pursue a civil action or a complaint with, or otherwise notify, any state agency, other public prosecutor, law enforcement agency, or any court or other governmental entity of any alleged violation.” (Lab. Code, § 432.6, subd. (a).)

Plaintiff depends on a claim that the unchallenged waiver privacy protections compromised FEHA rights. Consistent with the demurrer to the first, fourth and fifth causes of action, the nexus between the conduct of COSI and any adverse employment action remains insufficiently pled. The demurer is therefore sustained as to the seventh cause of action.

Unlawful Medical Inquiry in Violation of FEHA

CareOnSite contends that Plaintiff’s unlawful medical inquiry claim fails because Plaintiff was not subjected to an unlawful medical examination and ARB’s legitimate safety interests for suspicionless drug testing of its operators complied with law.

“An employer or other covered entity may maintain and enforce rules prohibiting employees from being under the influence of alcohol or drugs in the workplace and may conduct alcohol or drug testing for this purpose if they have a reasonable belief that an employee may be under the influence of alcohol or drugs at work.” (Cal. Code Regs., tit. 2, § 11071, subd. (d)(2).) The complaint alleges a systematic policy of drug testing upon any accident regardless of the circumstances for purposes of establishing potential pretextual grounds for discrimination of any employee requiring subsequent accommodation. [Comp., ¶ 28.] The ninth cause of action relies on a general claim of a wrongful testing policy, while COSI contends testing constitutes a valid safety practice.

The position both relies on extrinsic inference and fails to adhere to the standard. The complaint specifically alleges no valid basis for suspicion and pretextual circumstances. Nothing in the complaint in any way suggests a random selection process somehow retroactively establishing legitimacy of the practice (See *Smith v. Fresno Irrigation Dist.* (1999) 72 Cal.App.4th 147, 161.) The demurer to the ninth cause of action is **OVERRULED**.

Conclusion

The demurrer is SUSTAINED with 20 days leave to amend as to the first, fourth, fifth and seventh causes of action, and OVERRULED as to second, third, and ninth causes of action. Plaintiff may not add any new causes of action, and may only amend the first, fourth, fifth, and seventh causes of action within the scope of this order. (Harris v. Wachovia Mortgage, FSB (2010) 185 Cal.App.4th 1018, 1023.) If Plaintiff fails to amend the complaint, Defendant is ordered to answer the remaining causes of action within 10 days of the lapse of the amendment deadline.

Superior Court of California

County of Los Angeles

Department 732

KEVIN ALBERTO PONCE,

Plaintiff,

v.

ARB, INC., et al.,

Defendants.

Case No.:

25STCV13120

Hearing Date: August 17, 2026

[TENTATIVE] RULING RE:

Defendant CAREOnsite, Inc.'s Demurrer to the Complaint

Defendant CAREOnsite, Inc.'s Demurrer to the Complaint is SUSTAINED with 20 days leave to amend as to the first, fourth, fifth and seventh cause of action, and overruled as to the second, third and

ninth causes of action

Defendant to provide notice.

Dated: August 17, 2026

Hon.

Richard S. Kemalyan

Judge

of the Superior Court